

23STCV18144 23STCV18144

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Case Number: 23STCV18144 Hearing Date: July 14, 2026 Dept: 316

BACKGROUND

This case is an insurance dispute. In its complaint, Plaintiff Stewart Title Guaranty alleges that Defendant Girl Empowerment, LLC erroneously secured a Homeowner's insurance policy on commercial property. In its cross-complaint, Girl Empowerment, LLC alleges that Stewart Title Guaranty and Stewart Title of California, Inc. wrongfully failed to pay out its insurance claims.

On August 1, 2023, Stewart Title Guaranty filed a complaint against Girl Empowerment, LLC. The complaint alleges three causes of action stemming from the facts alleged above.

On August 26, 2024, Girl Empowerment, LLC ("Cross-Complainant") filed its original cross-complaint against Stewart Title Guaranty.

On November 4, 2025, Cross-Complainant amended its cross-complaint to name Stewart Title of California, Inc. as a cross-defendant.

On May 4, 2026, Cross-Complainant filed its second amended cross-complaint ("SAXC") against Stewart Title Guaranty and Stewart Title of California, Inc. The SAXC alleges nine causes of action stemming from the facts alleged above.

On June 1, 2026, Stewart Title of California, Inc. ("Cross-Defendant") filed a demurrer to the SAXC. Cross-Defendant also filed an accompanying Motion to Strike.

On June 30, 2026, Cross-Complainant filed an opposition.

On July 8, 2026, Cross-Defendant filed a reply.

TENTATIVE RULING

Defendant's demurrer is SUSTAINED without leave to amend. Defendant's Motion to Strike is also GRANTED in part.

REQUEST FOR JUDICIAL NOTICE

Cross-Defendant requests the Court take judicial notice of thirteen exhibits:

1. The Preliminary Report dated November 16, 2020;
2. The Amended Preliminary Report dated December 31, 2020;
3. The Articles of Organization for GE, filed with the California Secretary of State on November 20, 2020;
4. The Complaint filed by GE and others on January 22, 2024, in the action entitled Elaine Tran et al. v. Bo Sun et al., Los Angeles Superior Court Case No. 24PSCV00221;
5. The original Complaint filed in the instant action on August 1, 2023, by Plaintiff Stewart Title Guaranty Company;
6. The original Cross-Complaint filed in the instant action on August 26, 2024, by cross-complainant GE;
7. The Amendment to Cross-Complaint filed in the instant action on November 11, 2025, by cross-complainant GE (identifying STCA as cross-defendant "Roe 1");

8. The document styled “Exhibits in Support of Stipulation to File Amended Pleadings” filed in the instant action on January 5, 2026, (attaching as “Exhibit A” a copy of Stewart Title Guaranty Company’s proposed First Amended Complaint, and also attaching as “Exhibit B” a copy of GE’s proposed First Amended Cross-Complaint);

9. The Stipulation and Order to File Amended Pleadings, filed in the instant action on January 5, 2026;

10. The Demurrer to the First Amended Cross-Complaint filed in the instant action on January 16, 2026, by STCA;

11. The Notice of Errata filed in the instant action on April 30, 2026, by GE;

12. The item identified in the Court’s docket for the instant action as the “Amended Cross-Complaint (1st)” filed on May 4, 2026; and

13. The Minute Order in the instant action dated May 12, 2026, at 9:35 a.m.

Exhibits 4-13 are records of this Court.

Accordingly, the Court will take judicial notice of the fact that these documents have been filed under Evidence Code section 452, subdivision (d)(1), but not the truth of the matters asserted therein. Exhibit 3 is a document filed by Cross-Complainant with the California Secretary of State, and again, the Court will take judicial notice of the filing of this document.

Exhibits 1 and 2 are cited and quoted from in the SAXC and the Court thus finds that the existence of these documents and what they say is appropriate for judicial notice under Evidence Code section 452(h), but the Court will not take judicial notice of the truth of any facts set forth in these documents as such facts may be reasonably subject to dispute.

LEGAL STANDARD

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway,

Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (See *Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (See *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Ibid.*; see also *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245).

DISCUSSION

I.

Meet
and Confer

Before filing a demurrer or motion to strike, the demurring party shall meet and confer with the opposing party in person, by telephone, or by video conference. (Code Civ. Pro. § 430.41, subd. (a).) The demurring party must file a declaration detailing their meet and confer efforts. (Code Civ. Proc., §§ 430.41, subd. (a)(3).)

“A determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.” (Code Civ. Pro. § 430.41, subd. (a)(4).)

Here, the parties discussed the demurrer by telephone. (Katz Decl., ¶ 2.) Thus, the parties have satisfied the meet and confer requirement. (See Code Civ. Proc., §§ 430.41, subd. (a).)

II.

Cause
of Action No. 6 – Negligence

Negligence
claims are subject to a two-year limitations period. (So v. Shin (2013) 212 Cal.App.4th 652, 662.) “[U]nder the delayed discovery rule, a cause of action accrues and the statute of limitations begins to run when the plaintiff has reason to suspect an injury and some wrongful cause, unless the plaintiff pleads and proves that a reasonable investigation at that time would not have revealed a factual basis for that particular cause of action.” (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 803.)

As
to compulsory and permissive cross-complaints, a filed complaint tolls the statute of limitations, and the filing of the cross-complaint relates back to when the action was commenced. (ZF Micro Devices, Inc. v. TAT Capital Partners, Ltd. (2016) 5 Cal.App.5th 69, 85, 92.) For purposes of the statute of limitations, “an amendment to substitute in the real party in interest is entitled to relation-back effect.” (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 1011.) However, the complaining party must have been genuinely ignorant of the substituted party’s true name. (See Code Civ. Proc., § 474; see also Fireman’s Fund Ins. Co. v. Sparks Construction, Inc. (2004) 114 Cal.App.4th 1135, 1143 [“Moreover, the plaintiff must actually be ignorant of the Doe defendant’s name, i.e., ‘ignorant of the facts giving rise to a cause of action against that defendant.’”].) Furthermore, “when the plaintiff discovers a Doe defendant’s true name, he or she must amend the complaint accordingly.” (Fireman’s Fund Ins. Co. v. Sparks Construction, Inc. (2004) 114 Cal.App.4th 1135, 1143.) “Failure to comply with Code of Civil Procedure section 474 does not prevent a plaintiff from filing an amendment adding a new defendant; however, it does prevent the amendment from relating back.” (Id. at p. 1144.)

Here, Cross-Complainant’s

negligence cause of action against Cross-Defendant is based on Cross-Defendant's alleged negligence in preparing the Preliminary Report and Amended Preliminary Title Report it issued on November 20, 2020, and December 21, 2020, respectively. (See SAXC, ¶¶ 10-14, 110.) Cross-Complainant first named Cross-Defendant in this case on November 4, 2025, nearly five years later and well outside the limitations period for a negligence cause of action. Cross-Complainant seeks to avoid the statute of limitations by arguing application of the delayed discovery rule, equitable tolling and/or the relation back doctrine.

A.

Delayed

Discovery and Relation Back

Plaintiff

Stewart Title Guaranty's complaint against Cross-Complainant was filed on August 1, 2023, and explicitly referenced Cross-Defendant and its involvement in issuing the incorrect insurance policy. (See RJN, Exh. 5, ¶¶ 8-9.) Specifically, the complaint stated:

STCA provided Defendant with a preliminary report, which indicated the terms and conditions on which Plaintiff would insure Defendant's title. The preliminary report indicated that STCA would issue a Homeowner's Policy, which was an error as Defendant was not purchasing a home, but a commercial property. This error then carried over when STCA on behalf of Plaintiff issued a Homeowner's Policy of Title Insurance for a One-to-Four Family Residence to Defendant in connection with Defendant's purchase of the Property.

(Ibid. [emphases added].)

Accordingly,

Cross-Complainant knew or should have known of Cross-Defendant's identity and involvement by no later than August 9, 2023, the date Plaintiff Stewart Title Guaranty served its complaint on Cross-Complainant. (See SAXC, ¶ 54)). This is sufficient to put Cross-Complainant on notice of its negligence cause of action against Cross-Defendant. (See *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 803; *Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 397-98. Therefore, Cross-Complainant was on notice of its potential claims as of that date.

Nevertheless,

Cross-Complainant did not include Cross-Defendant as a named defendant when it filed its original cross-complaint on August 26, 2024. (See *Fireman's Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135, 1143.)

Cross-Complainant's failure to do so does not bar it from later adding Cross-Defendant to its cross-complaint, but it does bar the amendment of the cross-complaint to include Cross-Defendant from relating back to the original filing of the cross-complaint. (*Id.* at p. 1144.) Therefore, the statute of limitations will be determined from the moment when Cross-Complainant had reason to suspect an injury caused by Cross-Defendant and the date Cross-Defendant was added as a named defendant, November 4, 2025. (See *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 803.)

The Court

finds that Cross-Complainant was made aware of the alleged responsibility of Cross-Defendant for Cross-Complainant's harm more than two years before it amended the cross-complaint to add Cross-Defendant as a named defendant. As set forth above, Plaintiff Stewart Title Guaranty's complaint explicitly states that Cross-Defendant made an error in issuing Cross-Complainant's homeowner's title insurance policy and should have instead issued a commercial insurance policy. (See RJN, Exh. 5, ¶ 8 ["STCA provided Defendant with a preliminary report, which indicated the terms and conditions on which Plaintiff would insure Defendant's title. The preliminary report indicated that STCA would issue a Homeowner's Policy, which was an error as Defendant was not purchasing a home, but a commercial property."].) Once the complaint was served on August 9, 2023, Cross-Complainant was on notice that Cross-Defendant made a mistake which ultimately resulted in harm to Cross-Complainant. Therefore, the statute of limitations began to run by no later than this date. Accordingly, the two-year statute of limitation for this cause of action Cross-Defendant ran by August 9, 2025. Cross-Complainant did not add Cross-Defendant as named defendant until November 4, 2025, over two months after this deadline. Thus, this cause of action is time-barred. (See *So v. Shin* (2013) 212 Cal.App.4th 652, 662; *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 803.)

B.

Equitable

Tolling

Cross-Complainant's

equitable tolling argument fails because Cross-Complainant did not act

reasonably. (See Addison v. State of California (1978) 21 Cal.3d 313, 318-319 [listing three elements to apply equitable tolling: (1) plaintiff has timely filed a related action in a different forum or proceeding; (2) defendant had notice of plaintiff's claims and will not be prejudiced by tolling; and (3) plaintiff acted reasonably and in good faith].) As stated above, Cross-Complainant knew long before it filed its original cross-complaint was filed in this matter that Cross-Defendant was responsible for the harm Cross-Complainant suffered. Therefore, a reasonable party would have named Cross-Defendant long before Cross-Complainant did so. For this reason, equitable tolling does not apply.

For these reasons, Cross-Complainant cannot rely on delayed discovery, relation back of Cross-Defendant's addition as a named cross-defendant to the date of the filing of the original cross-complaint or equitable tolling. This cause of action is therefore time-barred and the demurrer to it is sustained without leave to amend.

III.

Cause
of Action No. 7 – Negligent Misrepresentation

The Court holds that the demurrer to this cause of action is sustained without leave to amend.

To state a cause of action for negligent misrepresentation, the plaintiff must allege: (1) an assertion of an untrue fact; (2) believed by defendant to be true; (3) lack of reasonable ground for the belief; (4) defendant's intent to induce plaintiff's reliance upon the representation; (5) plaintiff's justifiable reliance upon the representation; and (6) resulting damage. (See Melican v. Regents of Univ. of Cal. (2007) 151 Cal.App.4th 168, 182.) "[A] positive assertion is required; an omission or an implied assertion or representation is not sufficient." (Apollo Capital Fund LLC v. Roth Capital Partners, LLC (2007) 158 Cal.App.4th 226, 243.)

Here, Cross-Complainant contends that Cross-Defendant negligently made two specific representations:

1. "[t]he form of policy of title insurance contemplated by this report is: ALTA Loan Policy 2006 with ALTA Endorsement-Form 1 Coverage, ALTA Homeowner's Policy (12/02/13), or equivalent,

Underwritten by: Stewart Title Guaranty Company"; and

2. the policy would "insur[e] against loss which may be sustained by reason of any defect, lien or encumbrance not shown or referred to as an exception herein and/or not excluded from coverage."

(SAXC,
p. 24-6-12.)

Cross-Defendant did make these two representations. However, said representations were not false. Cross-Defendant issued the identified policy, and the policy insured against losses sustained from any liens or encumbrances. The key issue in this case is not that these representations were false; it is that Cross-Defendant issued the wrong policy. Therefore, the alleged misrepresentations upon which this cause of action is based are not in fact misrepresentations. (See *Melican v. Regents of Univ. of Cal.* (2007) 151 Cal.App.4th 168, 182.)

In any event, for the reasons stated in the prior section, this cause of action is also time-barred. (See § II; *Ventura County Nat'l Bank v. Macker* (1996) 49 Cal.App.4th 1528, 1530-31.)

Accordingly, the demurrer to this cause of action is sustained without leave to amend.

IV.
Cause
of Action No. 8 – Breach of Contract

To state a cause of action for breach of contract, a plaintiff must be able to establish "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) If a breach of contract claim "is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference." (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 307.) "[A]n agent is ordinarily not liable on the contract when he acts on behalf of a

disclosed principal.” (Dones v. Life Ins. Co. of North America (2020) 55 Cal.App.5th 665, 689.)

Here,
the SAXC states Cross-Defendant was party to the contract established by the preliminary report and that Cross-Defendant breached said contract by “failing to perform its contractual obligations, including, without limitation, by failing to disclose a claimed storm drain easement encumbering the Property and by offering, and ultimately issuing, a form and scope of coverage inconsistent with the known non-residential character of the Property.” (SAXC, ¶ 129.)

Despite
Cross-Complainant’s allegations, Cross-Defendant was not a party to the contract. As the preliminary report explicitly states, “Affiant makes the following statements and representations for the benefit of, and reliance by, title insurer Stewart Title Guaranty Company, and its policy issuing agent Stewart Title of California.” (RJN, Exh. 1, p. 24 [emphasis added].)
Cross-Complainant also seems to acknowledge that Cross-Defendant was serving as Stewart Title Guaranty’s
agent during their course of dealings. (See SAXC, ¶ 95 [“Girl Empowerment and STGC entered into a contract—the Policy—for title insurance coverage for the Property based upon the terms and conditions set forth by STCA, on STGC’s behalf, in the Preliminary Report.”].) Therefore, since Cross-Defendant was serving as Stewart Title
Guaranty’s agent during their course of dealings, it is not liable on the contract. (See Dones v. Life Ins. Co. of North America (2020) 55 Cal.App.5th 665, 689.)

In
opposition, Cross-Complainant contends that the dispute here is not whether Cross-Defendant is a party to the preliminary report. Instead, it is whether Cross-Defendant is a party to a separate implied-in-fact contract based on Cross-Defendant’s individual services. (See Opposition, p. 12:7-27.) First, this purported implied-in-fact contract is not the alleged contract set forth in the SAXC which forms the basis for their cause of action. If there was a separate implied-in-fact between the parties, Cross-Complainant must allege it in its SAXC, not in opposition to the demurrer. Second, the Court is not convinced that Cross-Defendant’s actions (i.e., investigating the property, exercising professional judgment in selecting the type of coverage to identify, preparing detailed reports defining the scope of the offer, and charging GE for those services) were done outside of the scope of its agency relationship with Stewart Title Guaranty. Finally, even

assuming arguendo this breach of contract theory otherwise had merit, it appears it would be time-barred for the reasons set forth above. (Code Civ. Proc., § 339 [stating that statute of limitations for breach of non-written contracts is two years].)

For these reasons, the demurrer to this cause of action is sustained. Cross-Complainant has requested leave to amend but has not offered any specific allegations it would add if given leave. The Court will consider any proffered factual allegations from Cross-Complainant in determining whether there is a reasonable possibility of successful amendment.

V.

Cause
of Action No. 9 – Indemnity

The elements for equitable indemnity are: (1) a showing of fault on the part of the indemnitor; and (2) resulting damages to the indemnitee for which the indemnitor is contractually or equitably responsible. (*Gouvis Engineering v. Superior Court* (1995) 37 Cal.App.4th 642, 646.) “To state a claim for equitable indemnity, a defendant must allege the same harm for which he may be held liable is properly attributable—at least in part—to the cross-defendant.” (*Platt v. Coldwell Banker Residential Real Estate Services* (1990) 217 Cal.App.3d 1439, 1445, fn.7.) “Unlike express indemnity, traditional equitable indemnity requires no contractual relationship between an indemnitor and an indemnitee.” (*Prince v. Pacific Gas & Electric Co.* (2009) 45 Cal.4th 1151, 1158 (*Prince*).)

“[U]nlike express contractual indemnity, implied contractual indemnity is a form of equitable indemnity.” (*Bay Development, Ltd. v. Superior Court* (1990) 50 Cal.3d 1012, 1029, citing *E. L. White, Inc. v. City of Huntington Beach* (1978) 21 Cal.3d 497.) “Traditional equitable indemnity and implied contractual indemnity share a key feature that distinguishes them from express indemnity: unlike express indemnity, neither traditional equitable indemnity nor implied contractual indemnity is available ‘in the absence of a joint legal obligation to the injured party.’” (*Jocer Enterprises, Inc. v. Price* (2010) 183

Cal.App.4th 559, 573 [citing Prince, supra, 45 Cal.4th at 1157].)

“Thus, no indemnity may be obtained from an entity that has no pertinent duty to the injured third party.” (Jocer Enterprises, Inc. v. Price (2010) 183 Cal.App.4th 559, 573.) The Supreme Court has stated: “Indeed, our recognition that ‘a claim for implied contractual indemnity is a form of equitable indemnity subject to the rules governing equitable indemnity claims’ [citation] corrects any misimpression that joint liability is not a component of such claims.” (Prince, supra, 45 Cal.4th at 1157, 1166.)

Here, the SAXC alleges that because of Cross-Defendant’s actions, Cross-Complainant had to spend funds to defend itself against the Stewart Title Guaranty’s complaint, prosecute its own affirmative claims against Stewart Title Guaranty, repay the loans and lease payment made by DTE, and negotiate with the city of El Monte. (See SAXC, ¶¶ 133, 136-37.)

Despite these allegations, Cross-Complainant is not alleged to owe any legal obligations to Stewart Title Guaranty. And on the flip side, there is no allegation that Cross-Defendant owes any legal duty to the city of El Monte or DTE. Therefore, there is no joint legal obligation to any third party. (See Jocer Enterprises, Inc. v. Price (2010) 183 Cal.App.4th 559, 573.) Accordingly, there is no basis to claim that Cross-Defendant must indemnify Cross-Complainant for any of its losses or expended funds.

In opposition, Cross-Complainant illustrates a causal chain between Cross-Defendant’s alleged actions and Cross-Complainant’s liability and losses. (See Opposition, p. 11:1-9.) However, even assuming the accuracy of this causal chain, it does not show a joint legal obligation to Stewart Title Guaranty, the city of El Monte, or DTE. Without these joint obligations, there is no basis for this cause of action. (See Jocer Enterprises, Inc. v. Price (2010) 183 Cal.App.4th 559, 573.)

The demurrer to this cause of action is sustained. As with the prior section, Cross-Complainant has requested leave to amend but has not offered any specific allegations it would add if given leave. The Court will consider any proffered factual allegations from Cross-Complainant in determining whether there is a reasonable possibility of

successful amendment.

VI.

Motion

to Strike

The Court grants in part Cross-Defendant's

Motion to Strike.

"Any party, within the

time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e)." (Code Civ. Proc., § 435, subd. (b)(2).)

"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.)

Here, Cross-Defendant

requests the Court strike specific portions of the SAXC. The Court addresses these requests below:

Ø SAXC, page 3, ¶ 7: the entire paragraph
(asserting conclusory allegations of reciprocal vicarious liability)

o

DENIED

– the Court finds no basis to strike these allegations.

Ø SAXC, page 14:5-11, ¶¶ 61 and 62: the

words "and Girl Empowerment was genuinely ignorant of evidence of STCA's identity, role, and involvement vis-à-vis STCA's relationship with STGC and conduct affecting Girl Empowerment" and the words "On April 10, 2024 and May 29, 2025, Girl Empowerment took the depositions of Eleanore Sharpe and STGC's person most qualified. Through those depositions, Girl Empowerment obtained evidence establishing and confirming the role of STCA vis-à-vis STGC and the conduct affecting Girl Empowerment that was the subject of the original cross-complaint."

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DENIED

– Court has already addressed the relation back doctrine and its applicability to this case

Ø SAXC, pages 24:1 – 26:12, ¶¶ 113–120 and

121-131: the entirety of the SAXC's seventh cause of action for negligent misrepresentation and eighth cause of action for breach of contract

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DENIED

– The Court allowed the filing of the SAXC without limiting amendments to the prior cross-complaint.

Ø SAXC, page 26:5-6, ¶ 129: the words “by

failing to disclose a claimed storm drain easement encumbering the Property.”

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DENIED

– The Court finds no basis to strike this allegation.

Ø SAXC, pages 28:25-29:1 Prayer for relief ¶

6: the words “For indemnification against STCA for Girl Empowerment's reasonable attorneys' fees and costs in connection with defending against STGC's lawsuit and prosecuting Girl Empowerment's affirmative claims against STGC, negotiations with the City concerning the Property and the Easement, and repayment of moneys owed to DTE.”

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GRANTED

– The Court has determined there is no joint legal obligation to any third party. (See § V.) Therefore, Cross-Complainant cannot seek fees and costs on the basis of indemnification.

CONCLUSION

For the foregoing

reasons, Cross-Defendant's demurrer to the sixth through ninth causes of action is SUSTAINED without leave to amend, though the Court will consider any

proffer Cross-Complainant make as to how it could amend to cure the noted deficiencies. Defendant's Motion to Strike is GRANTED in part.